

22STCV38521 22STCV38521

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Case Number: 22STCV38521 Hearing Date: August 3, 2026 Dept: 514

Doe v. Defendant Doe Archdiocese

22STCV38521

Cross-Defendants' Motion to Strike Cross-Complaint

Defendant's Motion for Leave to File Cross-Complaint

Tentative Ruling

The motion to strike is granted .

The motion for leave to file a
cross-complaint is granted.

Background

This action arises out of allegations of sexual
assault, harassment, abuse, and molestation of a minor.

On December 9, 2022, John Mdo Doe
("Plaintiff") filed the complaint in this action against Defendant Doe
Archdiocese, Defendant Doe Diocese, Defendant Doe School, Defendant Doe School
District, and Defendant Doe Perpetrator, and Does 6 through 500, asserting
causes of action for (1) intentional infliction of emotional distress; (2)
[omitted]; (3) negligence; (4) negligent supervision; (5) negligent
retention/hiring; (6) negligent failure to warn, train or educate; (7)
[omitted]; (8) constructive fraud (Civil Code section 1573); (9) sexual harassment

(Civil Code section 51.9); (10) [omitted]; (11) sexual battery (Civil Code section 1708.5), and (12) sexual assault.

On December 19, 2022, Plaintiff filed the First Amended Complaint (“FAC”), asserting the same causes of action and naming as defendants The Roman Catholic Archdiocese of Los Angeles (“Archdiocese”); The Archdiocese of Los Angeles Education & Welfare Corporation (“ALAEWC”); Alliance College-Ready Public Schools (“Alliance” or “Defendant”); Los Angeles Unified School District (“LAUSD”); Rosalio Medrano (“Medrano”), and Does 6 through 500.

In February and April 2023, Medrano, Archdiocese, and ALAEWC filed answers to the FAC.

In April and December 2024, the Court, at the request of Plaintiff, dismissed Archdiocese, ALAEWC, and LAUSD.

In October 2024, the case was transferred to this department (then Department 56, now renamed Department 514).

On December 17, 2024, the Court set trial for August 17, 2026.

On April 16, 2026, Defendant Alliance filed an answer to the FAC. (Defendant Alliance had appeared in this action and filed documents as early as July 2024 but had not previously answered the FAC.)

On April 16, 2026, Alliance College-Ready Public Schools (“Alliance”) filed an answer to the FAC. Among the fifteen affirmative defenses in the answer is the Second Affirmative Defense (comparative negligence/apportionment of fault).

Also on April 16, 2026, Defendant Alliance filed a cross-complaint for apportionment of fault against Roes 1 and 2.

Twelve days later, on April 28, 2026, Defendant Alliance filed a First-Amended Cross-Complaint (“FACC”) for apportionment of fault against Roes 1 and 2.

On July 8, 2026, the Court (on the ex parte application

of Defendant Alliance supported by a stipulation of the parties) continued the trial date to October 26, 2026.

There are currently two motions before the Court and set for hearing on August 3.

First, on May 19, 2026, Cross-Defendants Roe 1 and Roe 2 (identified as Plaintiff's parents), filed a motion to strike the cross-complaint filed on April 16.

Defendant Alliance filed an opposition on June 30, and Roes 1 and 2 filed a reply on July 7.

Second, on June 16, 2026, Defendant Alliance filed a motion for leave to file the FACC that was accepted for filing on April 28. Plaintiff and Roes 1 and 2 filed an opposition on June 30, and Defendant Alliance filed a reply on July 7.

The hearing on both motions was initially set for July 14 and was continued by the Court to August 3.

Legal
Standard

The Code of Civil Procedure distinguishes between compulsory and permissive cross-complaints.

A compulsory cross-complaint, under Code of Civil Procedure section 426.30, is one that asserts (1) a "related cause of action"; (2) that a party against whom a "complaint" has been filed and served has against the "plaintiff"; and (3) that exists as of the time the answer to the "complaint" is served. (Code Civ. Proc., § 426.30, subd. (a).)

As used in section 426.30, a "related cause of action" is defined as "a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint." (Code Civ. Proc., § 426.10, subd. (c).) "Complaint" is defined to include a cross-complaint, and "Plaintiff" is defined as "a person who files a complaint or cross-complaint." (Id., subds. (a) & (b).)

Subject to the exceptions set forth by

statute, if a party fails to assert fails to assert a related cause of action against the plaintiff that exists as of the time the party answers the complaint, "such party may not thereafter in any other action assert against the plaintiff the related cause of action not pleaded." (Code Civ. Proc., § 426.30, subd. (a).)

A permissive cross-complaint, in contrast, may include a much broader group of pleadings. Under Code of Civil Procedure section 428.10, in a permissive cross-complaint a party may assert an unrelated cause of action "against any of the parties who filed the complaint or cross-complaint against him." (Code Civ. Proc., § 428.10, subd. (a).) Alternatively, in a permissive cross-complaint a party may assert a "cause of action he has against a person alleged to be liable thereon, whether or not such a person is already party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Id., subd. (b).) Cross-complaints for contribution or indemnity against new parties fall within the definition of a permissive cross-complaint in section 428.10.

A party must file a compulsory cross-complaint at the same time as (or before) the answer to the complaint. (Code Civ. Proc., § 426.30, subd. (a).) If a party fails to do so, and then later on seeks leave to file the cross-complaint, the court "after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith." (Code Civ. Proc., § 426.50.) The "good faith" standard must "be liberally construed to avoid forfeiture of causes of action." (Ibid.)

A party must file a permissive cross-complaint before the court has set a date for trial, or, if the causes of action in the cross-complaint are asserted against "any of the parties who filed the complaint or cross-complaint against him or her," at or before the party files the answer to the complaint or cross-complaint. (Code Civ. Proc., § 428.50, subds. (a) & (b).) If a party fails to do so, and then later on seeks leave to file the cross-complaint, the court may grant leave "in the interests of justice." (Id., subd. (c).)

Cross-complaints against a person or entity that is not already a party in the action are always permissive, rather than compulsory. (*Insurance Co. of North America v. Liberty Mutual Ins. Co.* (1982) 128 Cal.App.3d 297, 303; 1 Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* [The Rutter Group 2026], ¶ 6:524.)

Request for
Judicial Notice

Cross-Defendants ask the Court to take judicial notice of (1) Plaintiff's Complaint; (2) the Order dated December 17, 2024, setting a trial date; and (3) Alliance's Answer filed on April 16, 2026. The request is granted.

Objections
to Evidence

Alliance asserts one objection to the Declaration of Anthony M. DeMarco attached to Cross-Defendants' opposition to the motion for leave. The objection is overruled.

Discussion

Motion to Strike

Cross-Defendants move to strike the Cross-Complaint filed by Alliance on April 16. (See Notice of Motion and Motion, at 2:3-4.) The Cross-Complaint was not timely filed under Code of Civil Procedure section 428.50, and Alliance did not then (and does not now) seek a court order permitting the filing of this Cross-Complaint.

Accordingly, the motion is granted.

Motion for Leave to File a
Cross-Complaint

Alliance moves for an order granting leave to file the Cross-Complaint that was accepted for filing and stamped as filed on April 28. (See Notice of Motion and Motion, at 2:6-7; Young Decl., Exh. A.) As this pleading

seeks to add new parties to the action, it is classified by the Code of Civil Procedure as a permissive cross-complaint.

And because the cross-complaint was not timely filed, Alliance must show that the filing of the proposed cross-complaint is “in the interest of justice.” (Code Civ. Proc., § 428.50, subd. (c).)

Rightly or wrongly, Defendant

Alliance has asserted in its answer an affirmative defense regarding allocation of fault. Defendant Alliance now also

seeks to file a cross-complaint against Plaintiff’s parents asserting a cause of action for apportionment of fault. Alliance is entitled to an adjudication of its defense and cross-complaint in some forum.

In this procedural posture, the Court

expresses no views on the merits of the proposed cross-complaint. It may have merit. It may have none. The merits of this (or any) pleading will be decided

at a trial – or, where appropriate, on a pre-trial motion for summary judgment or summary adjudication.

As a legal matter, if the Court denies

the motion of Alliance for leave to file its cross-complaint, Alliance will be entitled to file a new, separate action asserting the same cause of action against Roe 1 and Roe 2. Although the new action could

be related to this one, the practical effect of denying the motion is that there could need to be two separate trials arising out of this same subject matter and involving the same witnesses and underlying facts. Given the nature of the allegations and facts, this will be a difficult trial under the best of the circumstances; forcing the parties and witnesses to endure two trials on the same facts is not in the interests of justice.

The Court recognizes that if the

motion is granted, there may need to be a further continuance of the trial. Cross-Defendants may need to take

discovery, and they may seek to file a motion for summary judgment. Given the late date on which Cross-Defendants have been added to the case, the Court is likely to grant any reasonable request by Cross-Defendants for an appropriate trial continuance. Although delaying the trial again raises real concerns for the parties – and particularly the Plaintiff – those concerns are outweighed by the risk of having two separate trials involving the participants (including Plaintiff).

Under all of the circumstances present

here, the Court finds that it is in the interests of justice to permit Defendant Alliance to file a cross-complaint.

The motion for leave is granted.

Conclusion

The Court GRANTS the motion of Cross-Defendants Roes 1 and 2 to strike the cross-complaint filed on April 16, 2026.

The Court STRIKES the cross-complaint filed on April 16, 2026.

The Court GRANTS the motion of Defendant Alliance College-Ready Public Schools to file the First Amended Cross-Complaint accepted for filing on April 28, 2026.
The First Amended Cross-Complaint accepted for filing on April 28, 2026, remains on filed.

Cross-Defendants are to file a response to the First Amended Cross-Complaint by no later than August 24, 2026.

Counsel for Defendant Alliance is ordered to give notice.